

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUWT055074: RICHARD HERNANDEZ vs G W SURFACES

06/30/2026 in Department 21

**Motion to Compel Further Discovery Responses to Special and Form Interrogatories and
Request for Monetary Sanctions**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Compel Further Discovery Responses to Special and Form Interrogatories and Request for Monetary Sanctions (*Opposed*)

Tentative Ruling:

Plaintiff’s Motion to Compel Further Discovery Responses to Special and Form Interrogatories and Request for Monetary Sanctions is GRANTED as to Form Interrogatory-Employment nos. 200.1, 208.1, 216.1 and 217.1, and Special Interrogatory nos. 9, 14, 45, 67, 74, and 75. Defendant is to provide further responses, without objection, within 15 days after service of notice of this ruling.

Plaintiff’s motion is GRANTED in part and DENIED in part as to Special Interrogatory no. 10. Defendant is ordered to respond to this interrogatory as it regards employees from the time Defendant purchased the business in 2023 through October 10, 2025. Defendant is to provide further responses, without objection, within 15 days after service of notice of this ruling.

Plaintiff’s motion is GRANTED as to Form Interrogatory-General no. 15.1. Defendant is to provide further responses, without objection, within 15 days after service of notice of this ruling.

Plaintiffs motion is DENIED as to Form Interrogatory-General no. 16.6, and Form Interrogatory-Employment nos. 201.1 and 211.3.

Plaintiff’s request for sanctions against Defendant and Defendant’s Counsel Gregory J. Ramirez, jointly and severally, is GRANTED in PART in the amount of \$1,600. The sanctions are payable within 15 days after service of notice of this ruling.

Counsel for Plaintiff is ordered to give notice of the Court's ruling within two (2) court days.

Discussion:

First, Defendant's procedural objection to Plaintiff's motion is unfounded. No statutory provision in the California Discovery Act or rule in the California Rules of Court categorically mandates filing separate motions to compel for different types of interrogatories. Both form interrogatories and special interrogatories are governed by the same statutory framework for compelling further responses under CCP § 2030.300. California Rule of Court 3.1345 cited by Defendant does not distinguish between Form and Special interrogatories nor require they be addressed by separate discovery motions. (California Rule of Court 3.1345(a)(2).)

Second, Defendant's Supplemental Responses served on June 12, 2026 do not moot this motion. Those Responses only supplement the Form Interrogatories-Employment, but leave the Form Interrogatories-General and Special Interrogatories unsupplemented. Moreover, the serving of supplemental responses to interrogatories after a motion to compel has already been filed does not divest the trial court of authority or automatically moot the motion. The trial court retains the broad discretion to rule on the adequacy of the late-filed supplemental responses and to decide the motion on its merits based on the circumstances of the case. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007), 148 Cal. App. 4th 390, 396; *County of San Benito v. Superior Court* (2023) 96 Cal. App. 5th 243, 255-256.) The Court is within its discretion to rule on the merits of Plaintiff's motion here, rather than require Plaintiff to file a new motion, and should do so in the interest of judicial economy.

In both the original motion and the Reply, Plaintiff lists potentially dozens of Defendant's discovery responses it finds lacking. However, Plaintiff provides a detailed separate statement that identifies and discusses only 15 of the disputed interrogatories (specifically, Form Interrogatories-General nos. 15.1 and 16.6; Form Interrogatories-Employment nos. 200.1, 201.1, 208.1, 211.3, 216.1 and 217.1; and Special Interrogatories nos. 9, 10, 14, 45, 67, 74 and 75). Somewhat confusingly as well, Plaintiff's Separate Statement addresses these 15 interrogatories in no particular order, and begins by discussing some of the Special Interrogatories, then switches over to the Form Interrogatories, and then returns to address the remaining of the Special Interrogatories.

The Court will address each of the 15 disputed interrogatories in numerical order, beginning with Form Interrogatories-General, then Form Interrogatories-Employment, then Special Interrogatories.

• **Form Interrogatory-General no. 15.1:** Defendant's response of "Not at this time. Discovery is yet continuing..." is non-responsive. Defendant must identify each denial of a material allegation and each special or affirmative defense in its pleadings and respond to subparts (a)-(c) as applicable. The response as stated does not identify which material allegations it is denying or which of the 13 affirmative defenses asserted its response is referencing. If the response applies to all denials of material allegations and affirmative defenses, the response is unclear. A further

response is warranted. Defendant is ordered to respond to this interrogatory in full, without objection.

- **Form Interrogatory-General no. 16.6:** Defendant has fully responded to this interrogatory. No further response is warranted.

- **Form Interrogatory-Employment no. 200.1:** Defendant has not fully responded to this interrogatory and its subparts. A further response is warranted. Defendant is ordered to respond to this interrogatory in full, without objection.

- **Form Interrogatory-Employment no. 201.1:** With the supplemental response, Defendant has now fully responded to this interrogatory. No further response is warranted.

- **Form Interrogatory-Employment no. 208.1:** Defendant has not fully responded to this interrogatory and its subparts. A further response is warranted. Defendant is ordered to respond to this interrogatory in full, without objection.

- **Form Interrogatory-Employment no. 211.3:** With the supplemental response, Defendant has now sufficiently responded to this interrogatory. No further response is warranted.

- **Form Interrogatory-Employment no. 216.1:** Although the supplemental response includes information responsive to this interrogatory and its subparts, the response does not specifically identify which affirmative defenses, if any, this response is referencing, nor does it respond to all subparts. Defendant's response does not identify supporting facts, witnesses with required contact information, or documents for any specific denial or defense. Moreover, no addresses or telephone numbers are provided for any named witness, as expressly required by the interrogatory. A further response is warranted. Defendant is ordered to respond to this interrogatory in full, without objection.

- **Form Interrogatory-Employment no. 217.1:** Although the supplemental response includes information responsive to this interrogatory and its subparts, some of the responses are still deficient. Plaintiff is correct. Throughout the supplemental response, Defendant identifies witnesses without providing addresses or telephone numbers. The response related to RFA #5(d) does not identify the specific documents, nor does the response identify who has each said document. A few other responses identify documents but fail to state who has the documents. The response to RFA No. 94 is entirely blank. A further response is warranted. Defendant is ordered to respond in full, without objection.

- **Special Interrogatory no. 9:** A request to identify individual supervisors at Defendant company is neither broad, burdensome, vague, ambiguous or irrelevant to the action. Defendant did not fully respond to this interrogatory. Defendant is ordered to respond to this interrogatory in full, without objection.

- **Special Interrogatory no. 10:** Defendant's request for a further response is granted in part. Plaintiff's demand for the names of all employees over a nearly six-year period (but not 26 years, as Defendant claims) is arguably overly broad and burdensome since Defendant has only owned

the business since 2023. Defendant is ordered to respond to this interrogatory, without objection, as it regards employees from the time Defendant purchased the business in 2023 through October 10, 2025.

- **Special Interrogatory no. 14:** A request to identify job titles and employment dates for an employee critical to the action is neither broad, burdensome, vague, ambiguous or irrelevant to the action. Defendant did not respond to this interrogatory. Defendant is ordered to respond to this interrogatory in full, without objection.

- **Special Interrogatory no. 45:** Defendant did not respond to this interrogatory. Stating “See attached” is not a response. Defendant is ordered to respond to this interrogatory in full, without objection.

- **Special Interrogatory no. 67:** Defendant did not fully respond to this interrogatory. No objections were asserted in the response. The response does not address the subparts. Defendant is ordered to respond to this interrogatory in full, without objection.

- **Special Interrogatory no. 74 & 75:** Defendant did not sufficiently respond to this interrogatory. It is unclear from the response whether no individuals exist, or if something else is implied by the response. Defendant is to provide a further response, without objection, responding to the specific questions asked. No objections were asserted in the responses.

Sanctions:

Plaintiff’s request for sanctions against Defendant and its counsel, jointly and severally, in the amount of \$3,200.00, is GRANTED in PART in the amount of \$1,600.